

FIRST ENDORSEMENT

Chief Prosecutor , Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, December 27, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29526 against Sergeant Maris Garcia, Tax Registry No. 949005. This case was conferenced on December 17, 2024, before Assistant Deputy Commissioner of Trials, Anne E. Stone, who approved the negotiated penalty of a Command Discipline Schedule B and the forfeiture of ten (10) vacation days. Charges and Specifications will be dismissed for plea purposes.

Andre Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

APPROVED

MAR 24 2025
Jessie Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031403BOOK & PAGE NO.
Page 1 of 3

PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, GARCIA	FIRST MARIS	M.I.	COMMAND 007
SHIELD NO. 962	TAX REGISTRY NO. 949005	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2010	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Maris GARCIA, on or about July 3, 2022, at approximately 0420, while assigned to 007 PCT and on duty, in the vicinity of 7th Precinct stationhouse, New York County, used offensive language based upon gender, in that Sgt. GARCIA referred to § 87(2)(b) genitalia.	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Sergeant Maris GARCIA, on or about July 3, 2022, at approximately 0420, while assigned to 007 PCT and on duty, in the vicinity of 7th Precinct stationhouse, New York County, used offensive language based upon the perceived mental status of § 87(2)(b) by stating in sum and substance: "you're acting crazy."	DISMISSED	VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.



FIRST DEPUTY COMMISSIONER

DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)



POLICE COMMISSIONER

3/24/25

DATE

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SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Sergeant Maris GARCIA, on or about July 3, 2022, at approximately 0420, while assigned to 007 PCT and on duty, in the vicinity of 7th Precinct stationhouse, New York County, used offensive language based upon gender, in that Sgt. Garcia repeatedly stated to § 87(2)(b) in sum and substance: "You have a dick?"	DISMISSED	
4. Sergeant Maris GARCIA, on or about July 3, 2022, at approximately 0420, while assigned to 007 PCT and on duty, in the vicinity of 7th Precinct stationhouse, New York County, used offensive language based upon race, in that Sgt. Garcia stated to § 87(2)(b) in sum and substance: "I am not your nigger."	DISMISSED	


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SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
5. Sergeant Maris GARCIA, on or about July 3, 2022, at approximately 0420, while assigned to 007 PCT and on duty, in the vicinity of 7th Precinct stationhouse, New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that, based on all of the statements alleged above, they spoke discourteously to § 87(2)(b) without sufficient legal authority.	DISMISSED	


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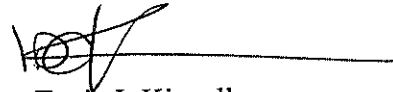
FIFTH ENDORSEMENT

First Deputy Commissioner to Deputy Commissioner, Department Advocate, March 25, 2025. Contents noted. Please note the Police Commissioner's **DISAPPROVAL** of the Third Endorsement and **APPROVAL** of the First Endorsement regarding Sergeant Maris Garcia, Tax No. 949005 (DADS No. 2023-29526; PODS Case No. C-031403) in light of the facts and circumstances of CCRB Case No. 202207750.

Separate and apart from the foregoing negotiation, the Police Commissioner **directs** that Sergeant Maris Garcia receive Training from the Training Bureau in Courtesy, Professionalism, and Respect.

The Deputy Commissioner, Department Advocate shall ensure that a copy of the fully adjudicated command discipline is expeditiously forwarded to the office of the Police Commissioner.

Forwarded for your **NECESSARY ATTENTION**.

A handwritten signature in black ink, appearing to read 'Tania I. Kinsella', with a long horizontal line extending to the right.

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jm

cc: Chief of Training

Deputy Commissioner, Trials

Commanding Officer, Professional Standards Division